WILLIAS MADZIMURE
and
SETTLEMENT CHIKWINYA
and
KUCACA IVUMILE PHULU
and
REGAI TSUNGA
and
SICHELESILE MAHLANGU
and
TENDAI LAXTON BITI
versus
JACOB MUDENDA
and
THE PARLIAMENT OF THE REPUBLIC OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE, 26 February 2026

Opposed Matter

M. S Katsande, for the applicants
S Hoko, for the first and second respondents

MUNANGATI- MANONGWA J: The applicants herein were elected members of Parliament for various constituencies in 2018. On 17 March 2021, the applicants were recalled from Parliament following a letter authored by the Secretary-General of the People's Democratic Party, Benjamin Rukanda, pursuant to Section 129(1)(k) of the Constitution of Zimbabwe. Dissatisfied, the applicants sought judicial relief, resulting in an extensive judgment in their favour granted by MAFUSIRE J under HH516/21. An appeal noted against the judgment was dismissed by the Supreme Court in SC345/21. The applicants have now approached this court seeking the following relief:

a) Payment of arrear salaries from March 17, 2021, to the end of March 2022
b) Fuel allowances from March 17, 2021, to the end of March 2022
c) National Assembly general sitting allowances
d) Parliamentary committee sitting allowances

e) Medical benefits

First applicant further avers that despite the multiple favorable judgments, the first and second respondents failed to comply and did not restore the applicants to their parliamentary positions or compensate them for their lost salaries and benefits. It is first applicant's case that the applicants only returned to Parliament after being re-elected in March 2022, having been without compensation from March 2021 until then. First applicant further avers that legal representatives for the applicants have sent several letters to the first and second respondents requesting an undertaking for compensation, but no acknowledgment has been received regarding the arrears. First respondent further avers that, most recently, on June 16, 2022, the applicants' lawyers demanded the arrear salaries and benefits from the first and second respondents, but no response was forthcoming.

Second, third, fourth, fifth and sixth applicants filed their founding affidavits fully associating themselves with the contents of the first applicant's founding affidavit.

In response, the respondents raised a point *in limine* concerning the judgment relied upon by the applicants, asserting that it has superannuated and requires revival. Mr. S. Hoko, the respondents' legal practitioner, noted that the judgment has become too old to be enforced directly, primarily due to an unreasonable delay in execution by the judgment creditor.

He further argued that this aging renders the judgment dormant, as it superannuated as of 23 September 2024, necessitating a formal court process for its revival before enforcement can proceed.

He further indicated that the applicant has not been reinstated in Parliament; thus, any claims stemming from this order cannot be executed. In support of this assertion, Mr. Hoko cited the case of *Nzara and Others v Kashumba and Others* HH 151/16, which establishes that a judgment superannuates after a period of three years.

ISSUE FOR DETERMINATION

Whether or not the judgment has superannuated

ANALYSIS

The respondents contend that the judgment in question has superannuated due to an alleged delay in executing it, which they argue has rendered it dormant. Citing the principles

from *Nzara and Others v Kashumba and Others,* Mr. S. Hoko posits that a judgment may become unenforceable three years after its issuance if not acted upon. It is vital for this court to hasten to define superannuation. Superannuation connotes the non-executability of a judgment debt after the lapse of a certain period post the date of the grant of the judgment debt by a court unless first revived. See *Klacid Investments (Pvt) Ltd* v *Livre Investments (Pvt) Ltd* HH 228/24. The High Court Rules of 2021 do not explicitly outline the period after which a judgment may be considered superannuated. While the term "superannuation" is referenced in Rule 69(3), it does not address the significant question of the lifespan of a judgment prior to its superannuation. Conversely, the Commercial Court Rules (SI 123/20), specifically Rule 42, delineate the period of superannuation as follows:

> *(2) "A judgment shall become annuated after three (3) years from the date on which it is granted but may be revived by the court on application on notice to the judgment debtor for the purpose and in such case no new proof of the debt shall be required.*
>
> *(3) Notwithstanding sub rule (1) subrule (2) where the judgement debtor performs in terms of a judgment that has superannuation in terms of this rule such performance shall be deemed valid but shall not by itself revive the judgement."*

In the present matter, it is crucial to observe that the applicants instituted proceedings in September 2024. Consequently, the argument regarding superannuation lacks merit, as the applicable timeframe has not yet expired.

In *Mafusire* v *Chikowero and Anor* HH 348/25 Dube – Banda J indicated that " In any event, even if the order had been more than three years in existence, I would still have rejected this argument premised on superannuation. I say so because the rule prohibits issuance of a writ after the judgment has superannuated. In this application, the applicant has not sought to issue a writ. Therefore, the question of superannuation does not arise in this matter."

In this case, it should be noted that there is no writ being sought hence the argument of superannuation does not hold water.

CONCLUSION

In conclusion, the court finds that the judgement in HH 516/21 has not reached the three-year threshold at the time these proceedings were instituted. Further, it has not been shown that the

judgment had become dormant in a manner contemplated by the doctrine of superannuation. Consequently, the judgement does not require revival for purposes of the present application.

Accordingly, the point *in limine* must fail. Resultantly, the matter must proceed to be heard on merits.

MUNANGATI- MANONGWA J……

Tendai Biti Law, applicants' legal practitioners.
Chihambakwe and Partners, respondents' legal practitioners.